

2014 WINTER SESSION REGISTRATION
LOEWS CORONADO BAY RESORT • CORONADO, CALIFORNIA

NATIONAL COLLEGE FOR DUI DEFENSE, INC.
JANUARY 23th & 24th, 2014

December 21, 2013 is the hotel block room rate deadline. To make reservations, call the hotel at 800-815-6397 or go to: <https://www.loewshotels.com/Coronado-Bay-Resort>

Seminar Fee:
\$495 NCDD Members
\$550 Non-members
\$595 at the door

Enclose check made
payable to NCDD
and mail to:
NCDD
445 South Decatur St.
Montgomery, AL 36104

For credit card
payment, fill out the
billing information
to the right and
fax to Rhea Kirk,
Executive Director,
at 334.264.1920
or mail to the
address above

Name _____
Name for Nametag _____
State Bar Number _____
Address _____
City _____ State _____ Zip _____
Telephone _____ Fax _____
Email _____
Attendees Dinner RSVP: _____ (one or two)
Would you be interested in a Thursday Golf Outing? ☐ yes ☐ no

BILLING INFORMATION

Name _____
Address _____
City _____ State _____ Zip _____
☐ Discover ☐ Visa ☐ MasterCard ☐ American Express
Credit Card # _____
Expiration _____ Amount _____ Date _____
Signature Required _____

Attendance Certification Statement

I acknowledge that the National College for DUI Defense, Inc. does not allow attendance by jurists or prosecutors except upon special written invitation. Accordingly, I hereby certify that I am not a full time judicial officer or full time prosecutor and that I am actively engaged in the defense of criminal cases.

Signature (required) _____

Date _____

**National College for
DUI Defense, Inc.**
445 South Decatur Street
Montgomery, AL 36104



"providing advanced training for the DUI defense practitioner"

Save the Date!

San Diego California



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Contact RHEA KIRK @ NCDD For More Information • 334.264.1950

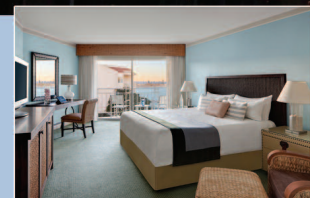


San Diego



is renowned for its idyllic climate, 70 miles of pristine beaches and a dazzling array of world-class attractions. Popular attractions include the world-famous San Diego Zoo and San Diego Zoo Safari Park, SeaWorld San Diego and LEGOLAND California. San Diego offers an expansive variety of things to see and do, appealing to guests of all ages from around the world. San Diego's arts and culture and culinary arts are booming. The hottest, new culinary arts talents prepare award-winning meals throughout the region's 6,400 eating establishments. Balboa Park, the largest urban cultural park in the U.S., is home to 15 museums, numerous art galleries, beautiful gardens, the Tony Award-winning The Globe Theatres and many other attractions.





LOEWS
CORONADO BAY



Centered between the Pacific Ocean and Coronado Bay, Loews Coronado Bay Resort epitomizes the true Southern California lifestyle. We are pleased to announce completion of a comprehensive redesign of our lobby, Bay Terrace, Cays Lounge, Market Café and Market-to-Go. Taking full advantage of the resort's waterfront location, the new design artfully combines San Diego's sun and surf with the casual charm of southern California.

For casual dining guests can savor the cuisine at the re-designed and re-concepted Market restaurant or satisfy your need for a coffee craving or sweet tooth at Market to Go featuring Starbucks Coffee. Our newly redesigned lobby bar, Cays Lounge, features in-door out door seating, cozy fire features and a 9 foot media wall. Our fine dining restaurant, Mistral will be offering global fusion cuisine served with sweeping views of Coronado Bay, Pacific sunsets and the San Diego skyline stretching out beyond Mistral's floor-to-ceiling windows.

Loews Coronado Bay Resort offers activities as varied as our guests. Relax by one of three pools, stroll down the pristine Silver Strand State Beach, pamper yourself at Sea Spa, sailing or boating on the bay, or just enjoy a glass of wine sitting at an outdoor fire feature watching the sunset. Other resort recreation include three tennis courts, a full service marina, bike rentals and a fleet of gondolas.



NCDD 2014 WINTER SESSION AGENDA

THURSDAY, JANUARY 23, 2014

8:00-8:45 AM Registration, Breakfast

8:45-9:30 AM I. Using SFSTs To Prove Sobriety • Speaker: Peter Gerstenzang, Esq. Albany, New York

- (a) HGN-You Have to Pass to Flunk
- (b) Walk and Turn-Must Be Sober to Take Test
- (c) One Leg Stand-The Instructions Not Given

9:30-10:15 AM II. Maximizing Mouth Alcohol • Speaker: Peter Gerstenzang, Esq. Albany, New York

- (a) The 20-Minute Observation Period
- (b) Making Sure They Get It
- (c) Use Their Witness to Make Your Case

10:15-10:30 AM Break

10:30-11:15 AM III. Tear the Whole Place Down: • Speaker: Peter Gerstenzang, Esq. Albany, New York

- (a) Why ASCLD/LAB "Accreditation" of a Lab Doesn't Mean Their Results are Reliable
- (b) Failure to Follow ISO Standards Means That Test Results Are Unreliable, Even In Labs That Think ISO Doesn't Apply to Them
- (c) The Dirty Little Secrets About Calibrators and Controls

11:15 AM-12:00 NOON IV. The Business of DUI Defense • Speaker: G. Cole Casey, Esq. San Diego, California

- (a) The Practicalities of Private Practice
- (b) Courtroom Skills and the Art of Practice Development-Separate But Equally Important
- (c) Minimizing Stress: How to Do What You Love and Still Love What You Do

12:00 NOON-12:45 V. Too Much Vermouth in My Martini • Speaker: Christine Koehler, Esq. Atlanta, Georgia

- (a) The Most Common Bar Complaints
- (b) How to Avoid Them
- (c) What to Do When You Get One

FRIDAY, JANUARY 24, 2014

8:00-8:45 AM Registration, Breakfast

8:45-9:30 AM I. Jury Selection-A Different Approach • Speaker: Donald Bartell, Esq. Riverside, California

- (a) The Only True Goals of a 20-Minute Voir Dire
- (b) How the Defense Can Join the Jury's Tribe
- (c) Using the Mysterious Veiled Question

9:30-10:15 AM II. Defending Boating While Intoxicated Cases • Speaker: Douglas Murphy, Esq. Houston, Texas

- (a) Why a BWI Investigation is Different
- (b) Simon Says, Simon Do is Not Science
- (c) How to Defend BWI Cases

10:15-10:30 AM Break

10:30-11:15 AM III. The Top 20 Myths of Blood, Breath, and Urine Testing • Speaker: Leonard Stamm, Esq. Greenbelt, MD

- (a) Breath
- (b) Blood
- (c) Urine

11:15-12:00 PM IV. Cross of the Arresting Officer • Speaker: Eric H. Sills, Esq. Albany, New York

- (a) Know Where You're Headed
- (b) Effective Impeachment
- (c) Non-Leading Questions

12:00-12:45 PM V. Digging Up The DRT • Speaker: James Nesci, Esq. Tucson, Arizona

- (a) DRE: What's In a Name?
- (b) I'm Not As Think as You Stoned I Am
- (c) DECP: The Final Joke

ASSEMBLY OF SPEAKERS

DONALD BARTELL, ESQ.

Donald Bartell is a partner in the law firm of Bartell & Hensel and has been in private practice for over 20 years. The firm's office is located in Riverside, California. Mr. Bartell is a graduate of the University of California, Berkeley and the University of Notre Dame School of Law. He is on the Board of Directors of the California Deuce Defenders - a statewide DUI defense organization - and he is a frequent lecturer to lawyers from around the state on topics of DUI defense. Mr. Bartell co-authored a nationwide book on drunk driving called *Attacking and Defending Drunk Driving Tests* published by James Publishing. He is an editorial consultant for the book *California Drunk Driving Law*. Mr. Bartell is a pilot and available to handle cases at remote locations by private plane.

G. COLE CASEY

Cole Casey recently made the cover and was featured in San Diego Attorney Journal's spring 2012 edition. Interior article: Cole Casey Champions the Underdogs, and Wins Fair and Square. "The only way to guarantee you'll lose is by not fighting." Leading San Diego DUI attorney G. Cole Casey is the premier advocate for drunk driving defense in California. His exclusive focus is on defending and winning DUI and Drunk Driving related cases. Attorney Casey is a well-known authority on DUI law. He is a frequent guest speaker and instructor on effective DUI Jury Trial strategies and defenses. A designated DUI Specialist by the California DUI Lawyers Association, Casey is also the only San Diego DUI attorney to hold a seat on the Board of Directors for the CDLA, a position attainable only by a unanimous vote. The California DUI Lawyers Association is the oldest Drunk Driving Defense Bar Association in the United States. Attorney Casey is a Sustaining Member and graduate of nine Annual NCDD Sessions at Harvard University. Attorney Casey's firm is the largest DUI only law firm in San Diego County.

PETER GERSTENZANG

Peter Gerstenzang is the senior partner in the Albany law firm of Gerstenzang, O'Hern, Sills & Gerstenzang. He is one of only three lawyers in New York State who have been Board Certified as specialists in DUI Defense Law by the National College for DUI Defense ("NCDD"). In addition, Mr. Gerstenzang is listed as a top DWI attorney in the following publications: *The Best Lawyers in America*®, *The New York Area's Best Lawyers*®, and *New York Super Lawyers*® Upstate Edition. He is listed as one of the "Top 25 Hudson Valley Super Lawyers 2010" regardless of category. Mr. Gerstenzang commenced his legal career as a prosecutor for the United States Army in the Republic of Vietnam. From 1972 to 1975, he was an Assistant District Attorney for the County of Albany. Certified as a breath test operator, he taught at the New York State Police Academy in their Breath Test Training Program for 12 years. Mr. Gerstenzang currently serves as the Dean of the National College for DUI Defense. His book, *Handling the DWI Case* in New York, published annually by Thomson/West, is con-

sidered a standard reference for the defense of Driving While Intoxicated cases. Mr. Gerstenzang is a regular lecturer for the New York State Bar Association; the National Association of Criminal Defense Lawyers/ National College for DUI Defense; the New York State Association of Criminal Defense Lawyers; the New York State Defenders Association; Albany County Bar Association; the New York State Magistrates Association; and the New York State Court Clerks Association.

CHRISTINE KOEHLER

This is the 10th year in row Christine Koehler has been recognized by her peers as a Georgia Super lawyer. She is considered one of Georgia's premier criminal defense attorneys. Christine's courtroom success makes her a sought after instructor at leading trial skills programs throughout the country. She is also a frequent lecturer at criminal defense seminars, nationwide. Christine is an AV rated attorney by Martindale Hubbell and a 10.0 rated lawyer by AVVO. After serving 8 years on the State Bar Investigative Panel, Christine now represents lawyers in front of the State Bar from grievance stage through special master hearings.

DOUGLAS MURPHY, ESQ.

Doug Murphy is a partner with Trichter & Murphy, P.C. based in Houston, Texas specializing in representing citizens accused of intoxication related offenses. Doug is a nationally recognized legal seminar lecturer, and author of numerous published legal articles. In 2009, Doug was appointed Regent of the National College for DUI Defense. That same year he was also appointed co-chair of the DWI Committee with the Texas Criminal Defense Lawyers Association, in addition to serving two consecutive terms on the Board of Directors for TCDLA from 2006-2012. Doug is board certified in Criminal Law by the Texas Board of Legal Specialization, and also in DUI/DWI Defense by the National College for DUI Defense, which is approved by the American Bar Association and the Texas Board of Legal Specialization. Doug was selected by his peers to be included in *The Best Lawyers in America*, 19th edition for his work in the practice area of DUI/DWI Defense. Doug is AV Preeminent-Rated® by Martindale-Hubbell. Doug has been recognized as a Texas Super Lawyer Rising Star by Texas Monthly magazine every year since the recognition began in 2004, and also as a Texas Super Lawyer. Doug was awarded the 2012 Sharon Levine Unsung Hero Lawyer of the Year Award by the Harris County Criminal Lawyers Association for his efforts in exposing the flaws in the Houston Police Departments BAT (breath alcohol testing) vans. Doug was also recognized as a Top Lawyer for the People by H-Texas magazine, and was referred to as the "Drinking Driver's Best Friend" by the Houston Press.

JAMES NESCI

James Nesci, a Regent of the National College for DUI Defense, has been Board Certified since 2001 and is one of only two Board



2014 WINTER SESSION

Certified Attorneys in Arizona. He is AV Preeminent-Rated by Martindale-Hubbell, named one of *The Best Lawyers in America* by Woodward/White. He is the author of *Arizona DUI Defense: The Law & Practice*, 3rd Edition, and is a contributing author to *Medical Legal Aspects of Alcohol*, 5th Edition. His firm's practice is devoted almost entirely to defense of vehicular crimes. Mr. Nesci was one of the lead attorneys on the Intoximeters RBT-IV breath-testing issue in Southern Arizona which resulted in the suppression of breath tests in over 7,000 cases and the removal of the RBT-IV from the streets of Arizona. He also spear-headed the effort to obtain the manufacturer's source code and software for the CMI Intoxilyzer 8000. He has taught seminars on the subjects of Ethics, 4th Amendment Law, Drug Recognition Evaluations (DUI-Drugs/DRE), Cross-Examination, Trial Tactics, Jury Selection, Field Sobriety Testing, Blood Alcohol Calculations, Opening & Closing Arguments, Source Code Litigation, Frye & Daubert Challenges, Intoxilyzer 8000 Operator's Course, Headspace Gas Chromatography, Blood and Breath Testing.

LEONARD STAMM

Leonard Stamm has been practicing criminal defense and DUI defense in state and federal court in Maryland for almost 30 years. He is presently a Regent of the National College for DUI Defense, serving on its Executive Committee as Secretary, and is also Chairperson of its Amicus Committee. He is a former President of the Maryland Criminal Defense Attorneys' Association. In September 2008 the first edition of Stamm's book, *Maryland DUI Law*, was published by West Publishing Company. In December 2010 Stamm co-authored the amicus brief filed in the Supreme Court by the National College for DUI Defense and the National Association of Criminal Defense Lawyers for the winning side in *Bullcoming v. New Mexico*. In December 2012 Stamm co-authored the amicus brief filed in the Supreme Court by the National College for DUI Defense and the National Association of Criminal Defense Lawyers on the winning side in *Missouri v. McNeely*. He also serves on the Maryland Criminal Pattern Jury Instruction Committee of the Maryland State Bar Association. Martindale-Hubbell gives him its highest rating - "AV Preeminent." He has also been listed in "Super Lawyers" and "Best Lawyers."

JOSEPH P. ST. LOUIS

Joe is a Partner in the Law Firm of Nesci & St. Louis, P.L.L.C., listed as a Tier One firm in U.S. News & World Report's *Best Law Firms in the United States*. Joe is the only lawyer in Arizona certified as a specialist in both criminal law (by the Arizona State Bar) and in DUI defense (by the National College for DUI Defense). Joe is listed in Woodward & White's *Best Lawyers in America* and has an AV Preeminent (5.0 out of 5.0) rating from Martindale Hubbell. He has been listed as one of the best lawyers in Arizona by Superlawyers magazine since 2009, and is listed as one of the best lawyers in Tucson by Tucson Lifestyles magazine. A past president of Arizona Attorneys for Criminal

Justice, Joe is a co-chair of their annual Aggressive Defense of the Accused Impaired Driver seminar. Joe is a trial lawyer, regularly trying criminal and DUI cases throughout Arizona, including DUI charges, DUI homicides, drug offenses, sexual offenses and violent crimes. Joe has spoken on a variety of legal topics at legal education seminars sponsored by State Bar and Defense Attorney organizations in Arizona, California, Georgia, Louisiana, Massachusetts, Mississippi, New Mexico, New York, Nevada, Oklahoma, Tennessee and Wisconsin. In 2003, at the request of the presiding justice of the Pima County Justice Courts, Joe served as a part-time Justice of the Peace. Joe has tried over 150 cases to juries, on both misdemeanor and felony charges, in Federal court and in State courts throughout Arizona. He has also argued cases before the Arizona Court of Appeals, the Arizona Supreme Court, and the Ninth Circuit Court of Appeals. Joe is one of four lawyers who recently litigated a 17-day-long Daubert hearing regarding the reliability of blood test results in the Maricopa County Superior Court, resulting in the suppression of all blood test results in 11 felony cases.

BEN SESSION

Ben Sessions is a partner in the Norcross firm of McIlhinney & Sessions. His practice is focused on the defense of clients charged with DUI and other drug and alcohol-related offenses. Ben has co-authored articles and participated in seminars before the National College for DUI Defense (NCDD), the Georgia Public Defender Standards Council, and other organizations. He is certified as both a Practitioner and Instructor of the National Highway Safety Traffic Safety's Standardized Field Sobriety Testing procedures. He has received extensive training in forensic breath, blood, and urine testing. He is a member of the National College for DUI Defense, the National Association of Criminal Defense Lawyers, and the Georgia Association of Criminal Defense Lawyers. Ben graduated from the University of Georgia School of Law. In 2010, he was named a "Rising Star" in the area of DUI defense by the Super Lawyers Magazine, and he was recognized for the "Greatest Trial Victory of the Year" by the Georgia Defense of Drinking Drivers Group.

ERIC H. SILLS

Eric H. Sills is a criminal defense attorney in Albany, New York, whose practice focuses on DWI defense. He is a partner in the law firm of Gerstenzang, O'Hern, Sills & Gerstenzang and, together with Peter Gerstenzang, is the co-author of the book *Handling the DWI Case* in New York. Eric has been Board Certified by the NCDD since 2008,* is a member of the NACDL's DUI Committee, and is listed as a top DWI attorney in the following publications: *The Best Lawyers in America*®, *The New York Area's Best Lawyers*®, and *New York Super Lawyers*® Upstate Edition. In fact, Eric is listed as one of the "Top 25 Hudson Valley Super Lawyers 2010" regardless of category.